

lifting of goods from seller godown. The Seller, at its sole discretion, shall be entitled to charge invoice value of goods lying with seller. The Sellers after giving not less than 7 days' notice to the Buyers, which shall be deemed to have been duly delivered if sent by registered post to the last known place of business or residence of Buyers, shall be entitled, at the risk of buyer, to public auction and/ or private sale or both on such terms and condition as the Seller may think fit. If the net sale proceeds of the goods shall be less than the price/invoice of the goods along with all other charges plus interest as mentioned in this policy, the Buyers shall undertake to pay on demand the deficit to the Sellers. In case, If the netsale proceeds of the goods shall be more than the price of the goods along with all other charges plus interest as mentioned in this policy, the seller shall adjust the payment dues against the buyer.

9. If the Seller is not able to deliver the entire goods or any part thereof within the specified time period by the reason of seller's working short time due to Force Majure or governmental restriction, temporally closure of seller's plant, fire, war, stoppage /hindrance in the supply of raw materials, flood, power explosion, accident, strike, riots, lock out, disorganization of labor/transport, breakdown of machinery or anyinevitable/ unforeseen event beyond the directly or indirectly control of the sellersand interfering with working of the plant of the Sellers then the Buyers shall bound to take delivery of such part of good as the Sellers may be in a position to deliver (if any) andthe time forcompleting the remaining invoice quantity be extended for such time as the Sellers may at their solediscretion decide considering the aforesaid factor.Provided that if the sellers are unable to deliver the goods for three consecutive months according to English Calendar, then the Buyersshall have the option to cancel the contract by giving notice in writing to the seller in respect of the remaining invoice quantity.In such event,the byer bound to take delivery of goods subject of buyer invoice or any part thereof, stored at the seller's or distributing agent's godown pending delivery or in process of production (WIP). Goodsdestroyed or damaged by fire, water, or other causes beyond the seller's control and rendering goods unfit for sale, the contract in respect of such goods shall be deemed to have been discharged as per para-8 or cancelled by mutual consent only. In such circumstances, the Buyersshall have no claim against the seller in respect of such goods in court of law or otherwise. In case the buyers had made advance payment in respect of such goods, the buyers shall be entitled to get refund thereof of adjustment of dues, if any, as per the policy.The Sellers shall have a general lien on all goods of the Buyers for the time being in the possessions of the Sellers(including goods already paid for but of which delivery may not have been taken by the Buyers) for the total amount due to the Sellers for the time being under this invoice and also for any amount due to the Sellers under any other invoice with the Buyers either alone or jointly.